

Aide Memoire – Bail Act 1977 (Vic)
Application for Bail Guide (adult and child applicants)

S 4 – A person accused of an offence, and being held in custody in relation to that offence, is entitled to be granted bail unless the BDM is required to refuse bail by this Act.

(New) Section 4AAA – Offences in respect of which bail must not be refused (SUMMARY OFFENCES ACT 1966)

(1)	Despite anything to the contrary in any other provision of this Act, a BDM who is deciding whether to grant bail to a person accused of an offence must not refuse bail if - (a) the person is accused only of offences against the SOA 1966 that are <u>not</u> referred to in Schedule 3; and (b) the person does not have a terrorism record; and (c) if the bail decision maker is a court, no exception under subsection (2) applies. (*Risk of terrorism or foreign incursion offence / previous revocation of bail for same offences.)
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Step 1

Exceptional circumstances test (4A)		Show compelling reason test (4C)	
S 4A(1A)	The BDM must refuse bail unless satisfied that exceptional circumstances exist that justify the grant of bail.	S 4C(1A)	The BDM must refuse bail unless satisfied that a compelling reason exists that justifies the grant of bail.
S 4A(2)	The accused bears the burden of satisfying the BDM as to the existence of exceptional circumstances.	S 4C(2)	The accused bears the burden of satisfying the BDM as to the existence of a compelling reason.
S 4A(3)	In considering whether exceptional circumstances exist, the BDM must take into account the surrounding circumstances.	S 4C(3)	In considering whether a compelling reason exists, the BDM must take into account the surrounding circumstances.
S 4A(4)	If the BDM is satisfied that exceptional circumstances exist that justify the grant of bail, the BDM must then move to step 2 – unacceptable risk test.	S 4C(4)	If the BDM is satisfied that a compelling reason exists that justifies the grant of bail, the BDM must move to step 2 – unacceptable risk test.

Step 2

Unacceptable risk test (4D)

S 4D(a)	A BDM must apply the unacceptable risk test – on section 4A(4) or 4C(4) requiring the bail decision maker to move to the step 2 – unacceptable risk test; or	S 4D(b)	On a decision of whether to grant bail to which, under section 4AA, neither the step 1 – exceptional circumstances test nor the step 1 – show compelling reason test applies.
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Section 4AA - Application of 'Exceptional circumstances' test

S 4AA(1)	The step 1 - exceptional circumstances test applies to a decision of whether to grant bail to a person accused of a Schedule 1 offence.
S 4AA(2)	The step 1 - exceptional circumstances test also applies to a decision of whether to grant bail to a person accused of a Schedule 2 offence if – (a) terrorism record; or (b) risk of terrorism or foreign incursion offence; or
S 4AA(2)(c)	The offence is alleged to have been committed - (i) while the accused was on bail for any Schedule 1 offence or Schedule 2 offence; or (ii) while the accused was subject to a summons to answer to a charge for any Schedule 1 offence or Schedule 2 offence; or (iii) while the accused was at large awaiting trial for any Schedule 1 offence or Schedule 2 offence; or (iiia) while the accused was on remand for a Schedule 1 offence or a Schedule 2 offence; or (iiib) while the accused was at large awaiting sentence for a Schedule 1 offence or a Schedule 2 offence (*Does not include an adjourned undertaking – refer new S 4AA(5)); or (iv) during the period of a community correction order made in respect of the accused for any Schedule 1 offence or Schedule 2 offence; or (v) while the accused was otherwise serving a sentence for any Schedule 1 offence or Schedule 2 offence; or (vi) while the accused was released under a parole order made in respect of any Schedule 1 offence or Schedule 2 offence; or
S 4AA(2)(d)	the offence is an offence of conspiracy to commit, incitement to commit or attempting to commit an offence in a circumstance set out in paragraph (c).

Section 4AA – Application of ‘Show compelling reason’ test

S 4AA(3)	The step 1 - show compelling reason test applies to a decision of whether to grant bail to a person accused of a Schedule 2 offence if s 4AA(2) does not apply.	S 4AA(4)	The step 1 - show compelling reason test also applies to a decision of whether to grant bail to a person accused of an offence that is neither a Schedule 1 offence nor a Schedule 2 offence if – (a) terrorism record; or (b) risk of terrorism or foreign incursion offence.
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Section 4E – Application of the ‘Unacceptable risk’ test

S 4E(1)	A BDM must refuse bail for a person accused of any offence if the BDM is satisfied that - (a) there is a risk that the accused would, if released on bail - (i) endanger the safety or welfare of any other person, whether by committing an offence that has that effect or by any other means; or (iii) interfere with a witness or otherwise obstruct the course of justice in any matter; or (iv) fail to surrender into custody in accordance with the conditions of bail; and (b) the risk is an unacceptable risk.
S 4E(3)	In considering whether a risk mentioned in subsection (1)(a) is an unacceptable risk, the BDM must - (a) take into account the surrounding circumstances; and (see s 3AAA)
Note – the term surrounding circumstances is defined in section 3. The BDM is required to take into account other matters if the accused is an Aboriginal person – see section 3A.	
	(b) consider whether there are any conditions of bail that may be imposed to mitigate the risk so that it is not an unacceptable risk.

Section 3AAA – Surrounding Circumstances

S 3AAA(1)	The BDM must take into account the surrounding circumstances relevant to the matter including, but not limited to, the following -
(aa)	whether, if the accused were found guilty of the offence with which the accused is charged, it is likely - (i) that the accused would be sentenced to a term of imprisonment; and (ii) if so, that the time the accused would spend remanded in custody if bail is refused would exceed that term of imprisonment;
(a)	the nature and seriousness of the alleged offending, including whether it is a serious example of the offence;
(b)	the strength of the prosecution case;
(c)	the accused’s criminal history;
(d)	the extent to which the accused has complied with the conditions of any earlier grant of bail;
(e)	whether, at the time of the alleged offending, the accused - (i) was on bail for another offence; or (ii) was subject to a summons to answer to a charge for another offence; or (iii) was at large awaiting trial for another offence; or (iiia) was on remand for another offence; or (iiib) was at large awaiting sentence for another offence; or (iv) was released under a parole order; or (v) was subject to a CCO made in respect of, or was otherwise serving a sentence for, another offence;
(f)	whether there was in force - (i) a FV IVO made against the accused; or (ii) a FVSN issued against the accused; or (iii) a recognised DVO made against the accused;
(g)	the accused’s personal circumstances, associations, home environment and background;
(h)	any special vulnerability of the accused, including - (i) being an Aboriginal person; or (ii) being a child; or (iii) experiencing any ill health, including mental illness; or (iv) having a disability, including physical disability, intellectual disability and cognitive impairment;
(i)	the availability of treatment or bail support services;
(j)	any known view or likely view of an alleged victim of the offending on the grant of bail, the amount of bail or the conditions of bail;
(k)	the length of time the accused is likely to spend in custody if bail is refused;
(l)	the likely sentence to be imposed should the accused be found guilty of the offence with which the accused is charged;
(m) and (n)	support for terrorism, or association – refer to the Act.

QUICK REFERENCE	
S 3A	Determination in relation to an Aboriginal person. See substituted and extended section.
S 3B	Determination in relation to a child. See substituted and extended section.
S 5AAA(1)	A BDM considering the release of an accused on bail must impose any condition that, in the opinion of the BDM, will reduce the likelihood that the accused may – (a) endanger the safety or welfare of any other person, whether by committing an offence that has that effect or by any other means ; or (c) interfere with a witness or otherwise obstruct the course of justice in any matter; or (d) fail to surrender into custody in accordance with the conditions of bail.
S 5AAAA	Family violence risks – BDM must make enquiries regarding family violence intervention order, safety notice or recognised DVO. If charged with family violence offence, must consider risk of future family violence and imposition of conditions / making of an IVO.
S 8(1)(aa)	The bail decision maker is not bound by the rules of evidence.
S 8A	A BDM may refuse bail for a person accused of any offence if satisfied that it has not been practicable to obtain sufficient information for the purpose of deciding the matter because of the shortness of the period since the commencement of the proceeding for the offence.
S 8B	For a person accused of an offence of causing injury to another person, a BDM may refuse bail if at the time of deciding the application it is uncertain whether the person injured will die or recover from the injury.
S 18(1)	An accused who has been refused bail and is in custody pending the hearing or trial of a charge may make a further application for bail. Note: Pursuant to new paragraph (aa), a new facts and circumstances application is not required for first or second application to a court for bail since being taken into custody (irrespective of whether it was a represented first application). It is required for any further application.
S 18AC	Application for variation of bail conditions.
S 18AE	Application for revocation of bail.
S 24	Arrest of person released on bail. This arrest power is expected to be exercised more frequently with the repeal of s 30A offence (Contravene conduct condition).
Repeals and other significant changes under March 2024 reform	
Repealed offences	Contravene conduct condition (s 30A) and Commit indictable offence whilst on bail (s 30B) are no longer offences.
Schedule 2 amended	Item 1 and Item 30 repealed from Schedule 2.
S 4AA(5) added	Accused released on an undertaking under ss 72 or 75 of the <i>Sentencing Act 1991</i> (adjourned undertaking) is NOT awaiting sentence or serving a sentence for that offence.
Schedules 1 and 2 amended	Both Schedules are amended to capture historical offences that have common elements with current offences in the Schedules.
Schedule 3 added	Introduction of new Schedule 3 (refer new s 4AAA).
S 12(3AA) added	Inserted new subsection - Additionally, the court may allow the person to go at large if – (a) the court considers it appropriate to do so; and (b) the court is not required to refuse bail.
Definitions and terminology updated	Insertion of definition of Aboriginal bail support service (s 3).
	Insertion of definitions of bail guarantee and bail guarantor (s 3) – replacing the term surety.
	Insertion of definition of bail undertaking (s 3) and regularising use of this term.
	Adoption of gender neutral language.

SCHEDULE 1 OFFENCES

Item	Offence	Legislative Reference
Common Law		
1	Treason	Common law
2	Murder	Common law
3	<i>Repealed as of 1 October 2018</i>	
Crimes Act 1958		
4	Aggravated home invasion	77B
5	Aggravated carjacking	79A
Drugs, Poisons and Controlled Substances Act 1981		
6(a)	Traffick large commercial quantity DOD	71
6(b)	Traffick commercial quantity DOD	71AA(1)
6(ba)	Traffick commercial quantity for benefit or at direction of criminal organisation	71AA(2)
6(c)	Cultivate large commercial quantity narcotic plant	72
6(d)	Cultivate commercial quantity narcotic plant	72A
6(e)	Conspiracy to commit (a), (b), (ba), (c) or (d).	79(1)
Offences as in force immediately before the commencement of the Drugs, Poisons and Controlled Substances (Amendment) Act 2001		
7(a)	Traffick commercial quantity DOD	71(1)
7(b)	Cultivate commercial quantity narcotic plant);	72(1)
7(c)	Conspiracy to commit an offence in paragraph (a) or (b).	79(1)
Criminal Code Act 1995 (Cth)		
8	Traffick / cultivate / sell / manufacture a commercial / marketable quantity of controlled drugs / plants (not less than commercial quantity as defined in section 70(1) of the <i>Drugs, Poisons and Controlled Substances Act 1981</i>) applicable to the drug of dependence.	302.2, 302.3, 303.4, 303.5, 304.1, 304.2, 305.3, 305.4
9	Import / export / possess a commercial / marketable quantity of border controlled drugs / plants (not less than the commercial quantity as defined in section 70(1) of the <i>Drugs, Poisons and Controlled Substances Act 1981</i>) applicable to the drug of dependence.	307.1, 307.2, 307.5, 307.6, 307.8, 307.9
Customs Act 1901 (Cth)		
10	Smuggling offence committed in relation to narcotic goods within the meaning of that Act in respect of a quantity (not less than the commercial quantity as defined in the <i>Drugs, Poisons and Controlled Substances Act 1981</i>) applicable to the drug of dependence.	231(1), 233A or 233B(1)
Terrorism (Community Protection) Act 2003		
11	Providing documents or information facilitating terrorist acts	4B(1)
	Obstruct or hinder search or other powers	21W
Other		
12	Conspiracy to commit, incitement to commit or attempting to commit an offence referred to in any other item of this Schedule.	
13	Any other offence the necessary elements of which consist of elements that constitute an offence referred to in any other item of this Schedule.	

SCHEDULE 2 OFFENCES

Item	Offence	Legislative Reference
Common Law		
1	<i>Repealed as of 25 March 2024</i>	
2	Manslaughter	Common law
3	Child homicide	Common law
3A	Homicide by firearm	Common law
23A	Common assault involving direct application of force to police officer or PSO – where offender had offensive weapon or firearm in possession / available and offender shows, tells or suggests offensive weapon or firearm is present	Common law (320A(1) and (2) Crimes Act)

Crimes Act 1958		
4	Causing serious injury intentionally (gross violence)	15A(1)
5	Causing serious injury recklessly (gross violence)	15B(1)
6	Causing serious injury intentionally	16
7	Threats to kill that is also a family violence offence	20
8	Stalking (and prior within 10 years, used/threatened violence) OR Stalking (and BDM satisfied the accused on a separate occasion used or threatened to use violence against the person whom the accused is alleged to have stalked, whether or not the accused has been convicted or found guilty of, or charged with, an offence in connection with that use or threatened use of violence.)	21A(1)
9	Rape	38(1)
10	Rape by compelling sexual penetration	39(1)
11	Assault with intent to commit sexual offence	42(1)
12	Abduction or detention for a sexual purpose	47(1)
13	Sexual penetration of a child under the age of 12	49A(1)
14	Sexual penetration of a child under the age of 16 in circumstances other than where at the time of the alleged offence the child was 12 years of age or more and the accused was not more than 2 years older than the child.	49B(1)
15	persistent sexual abuse of a child under the age of 16	49J(1)
16	abduction or detention of a child under the age of 16 for a sexual purpose	49P(1)
17	Incest (other than where both people are > 18) where: sexual penetration of a child or lineal descendant sexual penetration of a step-child sexual penetration of a parent, lineal ancestor or step-parent sexual penetration of a sibling or half-sibling	 50C(1) 50D(1) 50E(1) 50F(1)
21	Kidnapping	63A
22(aa)	Discharging firearm reckless to the safety of police officer or PSO	31C
22(a)	Armed robbery	75A(1)
22(b)	Aggravated burglary	77
22(c)	Home invasion	77A
22(d)	Carjacking	79
22(e)	Arson causing death	197A
22(ea)	Intentionally exposing an emergency worker, a custodial officer or a youth justice custodial worker to risk by driving	317AC
22(be)	Aggravated offence of intentionally exposing an emergency worker, a custodial officer or a youth justice custodial worker to risk by driving	317AD
22(ec)	Recklessly exposing an emergency worker, a custodial officer or a youth justice custodial worker to risk by driving	317AE
22(ed)	Aggravated offence of recklessly exposing an emergency worker, a custodial officer or a youth justice custodial worker to risk by driving	317AF
22(ee)	Damaging an emergency service vehicle	317AG
22(f)	Culpable driving causing death	318(1)
22(g)	Dangerous driving causing death or serious injury	319(1) or (1A)
22(h)	Dangerous or negligent driving while pursued by police	319AA(1)
23	Indictable offence – used or threatened firearm, offensive weapon or explosive	77

Family Violence Protection Act 2008 / Personal Safety Intervention Orders Act 2010		
18	Contravening a FVIO / safety notice where used or threatened violence AND has a prior for an offence within 10 years, where used/threatened violence against any person, OR BDM satisfied that the accused on a separate occasion used / threatened violence against protected person (whether charged or convicted or not).	37, 37A, 123 or 123A
19	Persistent contravention of notices and orders	125A
20	Contravening a PSIO where used or threatened violence AND has a prior for an offence within 10 years, where used/threatened violence against any person, OR BDM satisfied that the accused on a separate occasion used / threatened violence against protected person (whether charged or convicted or not)	100

Drugs, Poisons and Controlled Substances Act 1981		
24(a)	Trafficking in a drug or drugs of dependence to a child	71AB
24(b)	Trafficking in a drug of dependence	71AC
24(c)	Cultivation of narcotic plants	72B
24(d)	Conspiracy to commit (a) – (c) above.	79(1)
Offences as in force immediately before the commencement of the Drugs, Poisons and Controlled Substances (Amendment) Act 2001		
25(a)	Trafficking in a drug of dependence	71(1)
25(b)	Cultivation of narcotic plants	72(1)
25(c)	Conspiracy to commit an offence in paragraph (a) or (b).	79(1)

Criminal Code Act 1995 (Cth)		
26	Traffick / cultivate / sell / manufacture / import / export / possess a commercial / marketable quantity of controlled drugs / plants (other than commercial quantity as defined in s 70(1) DPCSA(Vic); cf Schedule 1)	302.2, 302.3, 303.4, 303.5, 304.1, 304.2, 305.3, 305.4, 306.2, 307.1, 307.2, 307.5, 307.6, 307.8, 307.9, 307.11, 309.3, 309.4, 309.7, 309.8, 309.10, 309.11, 309.12, 309.13, 309.14, 309.15

Customs Act 1901 (Cth)		
27	Smuggling offence (prior to 8 November 2005) where the offence is committed in relation to a commercial or trafficable quantity of narcotic goods	231(1), 233A or 233B(1)

Serious Offenders Act 2018		
28	Indictable offence committed while subject to supervision or interim supervision order	
29	Indictable offence and the accused at any time during the proceeding with respect to bail, is the subject of a supervision or interim supervision order	

Other		
31	Conspiracy to commit, incitement to commit or attempting to commit an offence referred to in any other item of this Schedule.	
32	Any other offence the necessary elements of which consist of elements that constitute an offence referred to in any other item of this Schedule.	

SCHEDULE 3 OFFENCES

Item	Offence	Legislative Reference
Summary Offences Act 1966		
1	Sexual Exposure	19(1)
2	Common Assault	23
3	Aggravated Assault	24(1) or (2)
4	Observation of Genital or Anal Region	41A
5	Visually Capturing Genital or Anal Region*	41B
6	Distribution of Image of Genital or Anal Region*	41C
7	Distribution of Intimate Image*	41DA(1)
8	Threat to Distribute Intimate Image*	41DB(1)
9	Food or Drink Spiking	41H(2)
10	Public Display of Nazi Symbols	41K(1)
11	Assaulting, etc. Emergency workers, custodial officers, youth justice custodial workers or local authority staff on duty	51(2), (3) or (4)
12	Assaulting registered health practitioners	51A(1) or (2)
13	Offence to harass witness etc.	52A

* As in force before its repeal.